



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

June 10, 2022

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 20962
(FIRST REVISION)

EXPIRATION DATE: 2026-05-31

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Portable Electric, Ltd.
Vancouver, Canada

US AGENT: Phil Rabin
San Francisco, CA
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of lithium ion batteries exceeding 35 kg aboard cargo-only aircraft. This special permit provides no relief from the Hazardous Materials Regulations (HMR) or the International Civil Aviation Organization's Technical Instructions for the Safe Transport of Dangerous Goods by Air (ICAO TI) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
 - d. This special permit serves as an approval under Special Provision A99 of the ICAO TI and as a "Competent Authority Approval" as defined under 49 CFR § 107.1.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101 Hazardous Materials Table Column (9B) in that each battery may have a mass exceeding 35 kg in net weight, as provided herein.
5. BASIS: This special permit is based on the application of Portable Electric, Ltd. dated April 25, 2022, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Lithium ion batteries <i>including lithium ion polymer batteries</i>	9	UN3480	N/A

7. SAFETY CONTROL MEASURES:a. OPERATIONAL CONTROLS:

(1) Two types of power stations identified as “VOLTstack® 2k” and “VOLTstack® 5k” are authorized for transportation under this special permit. Each power station is comprised of 1 (in the case of VOLTstack 2K), or 2 (in the case of VOLTstack 5K), batteries identified as Part Number 12-24-2800. VOLTstack 2K has a nominal energy rating of 2,816 Wh, and VOLTstack 5K has a nominal energy rating of 5,632 Wh. The power station houses various electronic components and is designed to provide power to external sources at the user location.

(2) Each battery must be equipped with a means of preventing dangerous reverse current flow for cells that are connected in parallel.

(3) The state of charge for lithium ion batteries housed within an aluminum enclosure must be not more than 30% when offered for transportation.

(4) Each battery must be equipped with a battery management system capable of preventing overcharge, short-circuiting, and over discharge.

(5) Cells and batteries must be protected against short-circuiting.

b. TESTING REQUIREMENTS:

(1) Each cell within the battery (Model 14-24-2800) must be of a type tested in accordance with the UN Manual of Tests and Criteria, 6th Revised Edition.

(2) Each battery must be of a type tested in accordance with the UN Manual of Tests and Criteria, 6th Revised Edition.

c. PACKAGING REQUIREMENTS:

- (1) Each battery must have a strong, impact-resistant steel outer casing.
- (2) The one or two battery(s) must be housed within a 0.1 inch thick aluminum enclosure along with electronic accessories for the operational control in a manner to provide adequate protection of the batteries and to prevent accidental operation during transportation.
- (3) The aluminum enclosure housing the batteries and needed accessories for power generation must be packed on a wooden pallet
- (4) Each pallet is shrink-wrapped.
- (5) The maximum net weight of batteries within a pallet may not exceed 160 kg (353 pounds).
- (6) Packaging must comply with the requirements in ICAO TI Packing Instruction 974 of the Supplement to the ICAO TI. Additionally, waste lithium batteries and lithium batteries being shipped for recycling or disposal are forbidden from air transport, and lithium ion batteries must not be packed in the same outer packaging with substances and articles of Class 1 (explosives) other than Division 1.4S, Division 2.1 (flammable gases), Class 3 (flammable liquids), Division 4.1 (flammable solids), or Division 5.1 (oxidizers).

d. MARKING: Each package must be marked with the special permit number "DOT-SP 20962" accordance with § 172.301(c).

8. SPECIAL PROVISIONS:

- a. Under the terms of this special permit, the grantee may only offer hazardous materials (i.e., the grantee is not authorized as a carrier).
- b. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit, the HMR, and the ICAO TI.
- c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
- d. This special permit in no way affects the need to obtain any required authorizations from other agencies of the United States Government or from the competent authorities of countries of origin, transit, destination, and the State of the Operator.

e. The grantee must maintain a record of all activity conducted under the authority granted in this special permit and upon request make this information available to DOT representatives or enforcement officials. The record must contain a listing and number of shipments made to include:

- (1) Dates of shipment; and
- (2) Description of each type of shipment.

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo-only aircraft.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this

special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "William Schoonover", is written over a light blue circular stamp.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: SH/NICKS